

Department of Public Works and Highways



Contract ID: 24AJ0052

Contract Name: Construction of Slope Protection Structure (Phase 2) Barangay San Juan, Mestizo Norte, San Carlos City, Pangasinan

Location of the Contract: San Carlos City, Pangasinan

CONTRACT AGREEMENT

THIS AGREEMENT, made this 17th day of April, 2024 between **Department of Public Works and Highways DPWH Pangasinan IV District Engineering Office, Tuliao, Sta. Barbara, Pangasinan** (hereinafter called the "Entity") and **JHI Construction & Supply, Banaoang, Calasiao, Pangasinan** (hereinafter called the "Contractor").

WHEREAS, the Entity is desirous that the Contractor execute **24AJ0052 Construction of Slope Protection Structure (Phase 2) Barangay San Juan, Mestizo Norte, San Carlos City, Pangasinan** (hereinafter called "the Works") and the Entity has accepted the Bid for **NINETEEN MILLION ONE HUNDRED NINE THOUSAND NINE HUNDRED SEVENTY TWO PESOS & 23/100 P19,109,972.23** by the Contractor for the execution and completion of such Works and the remedying of any defects therein.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this Agreement, words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract hereinafter referred to.
2. The following documents as required by the 2016 revised Implementing Rules and Regulations of Republic Act No. 9184 shall be deemed to form and be read and construed as part of this Agreement, viz:

- a. Philippine Bidding Documents (PBDs);
 - i. Drawings/Plans;
 - ii. Specifications;
 - iii. Bill of Quantities;
 - iv. General and Special Conditions of Contract;
 - v. Supplemental or Bid Bulletins, if any;
- b. Winning bidder's bid, including the Eligibility requirements, Technical and Financial Proposals, and all other documents or statements submitted;

Bid form, including all the documents/statements contained in the Bidder's bidding envelopes, as annexes, and all other documents submitted (e.g., Bidder's response to request for clarifications on the bid), including corrections to the bid, if any, resulting from the Procuring Entity's bid evaluation;

- c. Performance Security;
- d. Notice of Award of Contract and the Bidder's conforme thereto; and
- e. Other contract documents that may be required by existing laws and/or

WITNESSES:

JHI Construction and Supply

Republic of the Philippines
DEPARTMENT OF PUBLIC WORKS AND HIGHWAYS
Office of the District Engineer

NOMY DOMINGO B. QUINTO
Chief, Administrative Section

JULIETA C. BACANI
Accountant III
subject to the provisions of EO No. 91, s. 2019

TACLIN I. INIBA
Manager

By:
MEL HARVEY A. GONZALES
OIC, District Engineer

Department of Public Works and Highways



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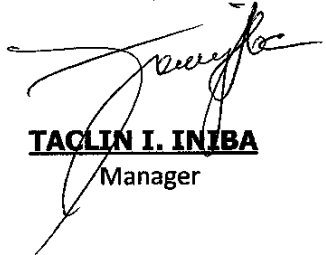
the Procuring Entity concerned in the PBDs. Winning bidder agrees that additional contract documents or information prescribed by the GPPB that are subsequently required for submission after the contract execution, such as the Notice to Proceed, Variation Orders, and Warranty Security, shall likewise form part of the Contract.

3. In consideration for the sum of **NINETEEN MILLION ONE HUNDRED NINE THOUSAND NINE HUNDRED SEVENTY TWO PESOS & 23/100 P19,109,972.23** or such other sums as may be ascertained, ***JHI Construction & Supply*** agrees to the provisions of this **CONTRACT AGREEMENT**, in accordance with his/her/its Bid.
4. The ***DPWH Pangasinan IV District Engineering Office*** agrees to pay the above-mentioned sum in accordance with the terms of the Bidding.

IN WITNESS whereof the parties thereto have caused this Agreement to be executed the day and year first before written.


MEL HARVEY A. GONZALES
OIC, District Engineer

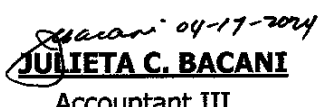
DPWH, Pangasinan IV DEO


TACLIN I. INIBA
Manager

JHI Construction & Supply

Witnessed by:


NONY DOMINGO B. QUINTO, MBA
Chief, Administrative Section


JULIETA C. BACANI
Accountant III

subject to the provisions of EO No. 91, s. 2019

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REPUBLIC OF THE PHILIPPINES)

MUNICIPALITY OF Sta. Barbara) S.S.

PROVINCE OF PANGASINAN

ACKNOWLEDGEMENT

BEFORE ME, Notary Public and in the Province of **PANGASINAN** personally appeared

MEL HARVEY A. GONZALES residence Certificate No. 24497170 issued on January 8, 2024 at Sta. Barbara, Pangasinan in his Official capacity as OIC, District Engineer, Department of Public Works and Highways Region I, representing the Republic of the Philippines and **TACLIN I. INIBA** with residence Certificate No. 08749915 issued on January 2, 2024 at Calasiao, Pangasinan known to me to be the same persons who executed to me foregoing **CONTRACT AND AGREEMENT** and they acknowledged to me that the same is their true acts and deeds for and behalf of the Parties they represent.

This instrument consists of three (3) pages, including this page of which the **ACKNOWLEDGEMENT** is written, duly signed by the contracting parties and their witnesses at the left margin and above their typewritten name on page two.

IN WITNESS WHEREOF, I have hereunto affixed my signature and seal of office this 17th day of April 2024 at Dagupan City.

ATTY. ALFREDO S. VELASCO, JR.

NOTARY PUBLIC UNTIL DEC. 31, 2025

SNC-NP-04-2024 DAGUPAN CITY

ROLL NO. 32722 TIN: 109-942-876

IBP NO. 1247 11-07-2023

PTR NO. 1497518 01-03-2024

Until **MCLE EXEMPT**

PTR No. _____

Issued _____

Issued on _____

Doc. No. 249

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Book No. 7

Series of 2024

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JHI Construction and Supply

Republic of the Philippines
DEPARTMENT OF PUBLIC WORKS AND HIGHWAYS
Office of the District Engineer

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